



Enforcement of Immigration Legislation (migr_eil)

Reference Metadata in Euro SDMX Metadata Structure (ESMS)

Compiling agency: Eurostat, the statistical office of the European Union

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Data description

Enforcement of immigration legislation data (EIL statistics) contain statistical information based on Article 5 and 7 of the [Council Regulation \(EC\) no 862/2007](#) as amended by the [Regulation 2020/851](#) with reference to Third country nationals:

- refused entry at the external border;
- found to be illegally present;
- ordered to leave;
- returned following an order to leave.

The national framework has an important impact on the resulted figures (the data comparability between the Member States is limited due to the national specific rules and procedures).

EIL data are based on administrative sources and are provided mainly by the Ministries of Interior or related Immigration Agencies. All of the data collected are disaggregated by citizenship.

Legal framework

The EIL statistics based on Article 5 and 7 of the [Council Regulation \(EC\) no 862/2007](#) as amended by the [Regulation 2020/851](#).

Some category of data is collected on voluntary basis.

Recent change in EIL data collection

[Regulation 2020/851](#) amending [Council Regulation \(EC\) no 862/2007](#) introduced several changes such as increasing the frequency of the data collection on returns and collecting more breakdowns for the statistics on third country nationals found to be illegally present and third country nationals returned. 2021 year is the first reference period for the amendments (E.G., 1st quarter of 2021 represent the first reference period affected by the introduced by the [Regulation 2020/851](#) for quarterly statistics on returns).

More details on the changes see Annex 5, 2021 EIL Technical Guidelines (see below).

Several member States applied for derogations regarding the new requirements mentioned by the [Regulation 2020/851](#). See list of the derogation granted are in the Commission implementing Decision (EU) 2021/431 of 10 March 2021 granting [derogations to certain Member States from Regulation \(EC\) No 862/2007](#)

Data dissemination

The dissemination of the annual statistics is mainly in March of each year for the previous reference year, depending on the data availability. The dissemination of the quarterly data is mainly in March, June, September and December, of each year for the previous reference quarter, depending on the data availability.

Data have been rounded to the nearest 5 while the EU aggregate is computed using the unrounded figures, which may trigger inconsistencies between the aggregate and the sum of the values.

Newer EIL statistics

I. Starting with first reference year 2014 new statistics on third country nationals returned were collected by Eurostat on voluntary basis:

- Third-country nationals who have left the territory by type of return and citizenship (migr_eirt_vol)
- Third-country nationals who have left the territory by type of assistance received and citizenship (migr_eirt_ass)
- Third-country nationals who have left the territory to a third country by type of agreement procedure and citizenship (migr_eirt_agr)
- Third-country nationals who have left the territory to a third country by destination country and citizenship (migr_eirt_des)

These new statistics is the result of a pilot data collection; clarifications and improvement is being pursued with the data providers. Technical and methodological limitations exist for some data providers and some figures might be estimated. As a result some inconsistency might exist between these statistics and the statistics provided for table 'Third country nationals returned following an order to leave (migr_eiord and migr_eirtn). In those cases where inconsistency between tables exists, data revision is expected.

II. Starting with first quarter of 2018 new quarterly statistics on third country returned were as well collected by Eurostat on voluntary basis:

- Third country nationals returned following an order to leave by citizenship age and sex - quarterly data (rounded) (migr_eirtn1)
- Third country nationals ordered to leave by citizenship, age and sex - quarterly data (rounded) (migr_eiord1)

These new statistics were initially the result of a pilot data collection;

III. Starting with first quarter of 2018 age and sex categories are collected for the statistics on third country nationals subject of return procedure (ordered to leave and returned persons), annual and quarterly data, for the following tables:

- Third country nationals ordered to leave - annual data (rounded) (migr_eiord)
- Third country nationals ordered to leave by citizenship, age and sex - quarterly data (rounded) (migr_eiord1)
- Third country nationals returned following an order to leave - annual data (rounded) (migr_eirtn)
- Third-country nationals returned following an order to leave, by type of return, citizenship, country of destination, age and sex – quarterly data (rounded) (migr_eirtn1)

IV. Starting with first quarter of 2021 the quarterly statistics on returns is becoming mandatory for all the Member States. Third country nationals unaccompanied minors subject of return procedure are also collected following the [Regulation 2020/851](#). The following tables are collected under this framework in 2021:

- Third country nationals ordered to leave by citizenship, age and sex - quarterly data (rounded) (migr_eiord1)
- Third-country unaccompanied minors ordered to leave, by citizenship, age and sex of the minor – quarterly data (rounded) (migr_eiord2)
- Third-country nationals returned following an order to leave, by type of return, citizenship, country of destination, age and sex – quarterly data (rounded) (migr_eirtn1)
- Third-country unaccompanied minors returned following an order to leave, by type of return, citizenship, country of destination, age and sex of the minor – quarterly data (rounded) (migr_eirtn2)

These quality statistics are expected to meet the minimum requirements as stated in 2021 EIL Technical guidelines. However, the data availability is affected by the derogations granted to

several countries, especially for the statistics on returns of unaccompanied minors. See list of the derogation granted are in the Commission implementing Decision (EU) 2021/431 of 10 March 2021 granting [derogations to certain Member States from Regulation \(EC\) No 862/2007](#) Annex 4 present the data quality assessment done in June 2021 for the EIL quarterly statistics provided under the new framework referring to the [Regulation 2020/851](#).

Metadata last update

21 February 2024

Statistical concepts and definitions

Third country nationals:

Any person who is not a citizen of the Union within the meaning of Article 17 (1) of the Treaty, including stateless persons (see Art. 2.1 (i) of the [Council Regulation \(EC\) no 862/2007](#)).

Third country nationals refused entry at the external border:

Third country nationals formally refused permission to enter the territory of a Member State (see Art. 2.1 (q) and 5.1(a) of the [Council Regulation \(EC\) no 862/2007](#)). The external border is defined as in the Schengen Borders Code ([Council Regulation \(EC\) No 562/2006](#), more details on Article 2.2). For countries which are not in the Schengen area, the external border is the same as the international border. The grounds for refusal refer to the Annex V part B of the Schengen Border Code, which is an administrative document in use in most of the Member States.

Each person is counted only once within the reference period, irrespective of the number of refusals issued to the same person.

Third country nationals found to be illegally present:

Third country nationals who are detected by Member States' authorities and have been determined to be illegally present under national laws relating to immigration (see Art. 2.1 (r) and 5.1(b) of the [Council Regulation \(EC\) no 862/2007](#)). This category relates to persons who have been found to have entered illegally (for example by avoiding immigration controls or by employing a fraudulent document) and those who may have entered legitimately but have subsequently remained on an illegal basis (for example by overstaying their permission to remain or by taking unauthorised employment).

Only persons who are apprehended or otherwise come to the attention of national immigration authorities are recorded in these statistics. These are not intended to be a measure of the total number of persons who are present in the country on an unauthorised basis.

Each person is counted only once within the reference period.

Third country nationals ordered to leave:

Third country nationals found to be illegally present who are subject to an administrative or judicial decision or act stating that their stay is illegal and imposing an obligation to leave the territory of the Member State (see Art. 7.1 (a) of the Regulation).

These statistics do not include persons who are transferred from one Member State to another under the mechanism established by the Dublin Regulation ([Council Regulation \(EC\) No 343/2003](#) and (EC) No 1560/2003, for these cases see related Dublin Statistics).

Each person is counted only once within the reference period, irrespective of the number of notices issued to the same person.

Third country nationals returned following an order to leave:

Third country nationals who have in fact left the territory of the Member State, following an administrative or judicial decision or act stating that their stay is illegal and imposing an obligation to leave the territory (see Art. 7.1 (b) of the [Council Regulation \(EC\) no 862/2007](#)). On a voluntary basis Member States provide Eurostat with a subcategory which relates to third country nationals returned to a third country only.

Persons who left the territory within the year may have been subject to an obligation to leave in a previous year. As such, the number of persons who actually left the territory may be greater than those who were subject to an obligation to leave in the same year.

The EIL statistics based on [Council Regulation \(EC\) no 862/2007](#) include forced returns and assisted voluntary returns. Unassisted voluntary returns are included where these are reliably recorded. Data do not include persons who are transferred from one Member State to another under the mechanism established by the Dublin Regulation ([Council Regulation \(EC\) No](#)

[604/2013](#) and [Council Regulation \(EC\) No 1560/2003](#) amended by [Council Regulation \(EC\) 118/2014](#), for these cases see related Dublin Statistics).

Each person is counted only once within the reference period.

Starting with first reference year 2014 new statistics on third country returned were as well collected by Eurostat on voluntary basis. These new statistics are using the following definitions:

Voluntary Return

Voluntary Return refers to the situation in which the third-country national complies voluntarily with the obligation to return (i.e. no enforcement procedure had to be launched) and this departure is confirmed by the information from eg. the border authority or the consulate authorities in the country of origin or other authorities such as IOM or any other organisations implementing a program to assist migrants to return to a third-country. Definition based on Art 3.8 [Directive 115/2008/EC](#).

Enforced return

Enforced return, removal refers to the situation in which the third-country national is subject to the enforcement of the obligation to return (the enforcement procedure has been launched).

Definition based on Art 3.5 and 3.8 [Directive 115/2008/EC](#).

Other concluded return

Other concluded return refers to the situation in which one can reasonably presume that the third country national was returned based on some assumptions (some information are missing and the departure is not confirmed by the information from the border authority).

Assisted Return

Assisted Return refers to the situation in which the third-country national was assisted to return. He/she is the beneficiary of a national or EU MS cooperative program to encourage return and to provide reintegration assistance. The TCN received (i) an in-kind assistance prior to departure (e.g. purchase of plane tickets) and/or (ii) in-cash allowances at the point of departure/upon arrival and/or (iii) an in-kind or in-cash reintegration assistance. Please note that beneficiaries of assisted return programs are mostly TCN who voluntarily return but some may also have been returned by force Definition based on Art 3.8 [Directive 115/2008/EC](#) and [Asylum and Migration Glossary 2.0](#).

Non-Assisted Return

Non-Assisted Return refers to the situation in which the third-country national is recorded with departure and he/she does not receive a support and assistance from the national authorities.

Readmission agreement

Readmission agreement refers to the situation where an international agreement exists between the reporting country and the country of return (of the third country national returned) under which the readmission procedure is set out.

Transit country

Transit country refers to the country that is considered intermediary destination of the TCN returned on the way to the country of Citizenship

Unaccompanied minors

Unaccompanied minor" means an unaccompanied minor as defined in article 2 of [Directive 2011/95/EU](#):

'minor' means a third-country national or stateless person below the age of 18 years; article 2(k);

(l) 'unaccompanied minor' means a minor who arrives on the territory of the Member States unaccompanied by an adult responsible for him or her whether by law or by the practice of the Member State concerned, and for as long as he or she is not effectively taken into the care of such a person; it includes a minor who is left unaccompanied after he or she has entered the territory of the Member States;" article 2(l)

Statistical unit

Each table refers to the number of persons, not to the number of administrative decisions or acts.

Statistical population

Please see point 3.4 "Concepts and definitions".

Reference area

EU Member States, the United Kingdom, Iceland, Norway, Liechtenstein and Switzerland.

Reference Period

Calendar year.

Accuracy - overall

The accuracy of the data collected under Articles 5 and 7 of the Regulation depends on the accuracy and efficiency of the underlying administrative systems. The widespread redevelopment of administrative systems had a strongly positive impact on the accuracy of the statistical data.

Unit of measure

Units of measure are absolute numbers of persons.

Data compilation

List of EU aggregates used in EIL statistics:

- EU28 aggregate refers to European Union before the Brexit. This aggregate covers following countries: BE, BG, CZ, DK, DE, EE, IE, EL, ES, FR, HR, IT, CY, LV, LT, LU, HU, MT, NL, AT, PL, PT, RO, SI, SK, FI, SE, UK
- EU27_2020 aggregate refers to European Union (27 countries without the United Kingdom). This aggregate covers following countries: BE, BG, CZ, DK, DE, EE, IE, EL, ES, FR, HR, IT, CY, LV, LT, LU, HU, MT, NL, AT, PL, PT, RO, SI, SK, FI, SE
- EU27 aggregate refers to European Union (before the accession of Croatia). This aggregate covers following countries: BE, BG, CZ, DK, DE, EE, IE, EL, ES, FR, IT, CY, LV, LT, LU, HU, MT, NL, AT, PL, PT, RO, SI, SK, FI, SE, UK

EU aggregates are calculated by Eurostat only if all the countries have available data.

Source data

Administrative data sources only. Data are compiled from the administrative records of the national authorities, mainly the Ministries of Interior or Immigration Agencies

Frequency of dissemination

Annual and quarterly data.

Timeliness

Data should be supplied to Eurostat no later than 3 months after the end of the reference period for annual data collection and no later than 2 months after the end of the reference period for quarterly statistics.

Comparability - geographical

Due to the recent implementation of the enforcement of immigration legislation data collection, some methodological and administrative differences still exist between the Member States. Some countries are in the process of harmonisation with the definitions, reducing conceptual disparities and changing data availability and completeness status for some categories of data. For the analytical purposes and comparisons between the countries please see the methodological annexes concerning the level of compliance with definitions and data completeness.

The national framework has an important impact on the resulted figures (the data comparability between the Member States is limited due to the national specific rules and procedures).

Comparability - over time

The enforcement of immigration legislation statistics should be compiled based on same methodology and the outputs should be comparable between years. Due to the ongoing methodological improvements which may occur at different reference periods, Member States may apply different rules for the same years, for some categories of data. For the analytical purposes and comparisons between the years please see the methodological annexes.

In 2020, some 137 800 non-EU citizens were refused entry into the EU at one of its external borders, down 79% compared with 670 800 in the previous year. This can be explained by the closing of the borders during the Covid-19 pandemic. Among the 21 EU Member States where the number of refusals decreased between 2019 and 2020, by far the largest fall was observed in Spain, from 493 500 in 2019 to 3 500 in 2020. This drop concerned almost entirely citizens of Morocco, as the number of Moroccans refused entry into Spain fell from 484 800 in 2019 to 500 in 2020.